

SENATE No.

The Commonwealth of Massachusetts

PRESENTED BY:

William J. Driscoll, Jr.

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act to provide equitable access to military creditable service for judges.

PETITION OF:

NAME:

William J. Driscoll, Jr.

DISTRICT/ADDRESS:

Norfolk, Plymouth and Bristol

SENATE No.

By Mr. Driscoll, a petition (accompanied by bill) (subject to Joint Rule 12) of William J. Driscoll, Jr. for legislation to provide equitable access to military creditable service for judges. Public Service.

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act to provide equitable access to military creditable service for judges.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Notwithstanding the provisions of this chapter or any other general or
2 special law, rule or regulation to the contrary, a member in service of a retirement system as
3 defined in section 1, or any judge or justice eligible for retirement benefits pursuant to M.G.L c.
4 32 sects. 65A-65J, shall be provided written notice by the retirement board upon entry into
5 service that if they qualify as a veteran who served in the armed forces of the United States, they
6 shall be entitled to credit for active service in the armed services of the United States; provided,
7 however, that such active service shall not be credited until such member, prior to or within 1
8 year of vesting pursuant to this chapter, has paid into the annuity savings fund of such system, in
9 1 sum or in installments, upon such terms and conditions as the board may prescribe, makeup
10 payments, for each year of creditable service sought, of an amount equal to 10 per cent of the
11 regular annual compensation of the member when said member entered the retirement system;
12 and, provided further, that such creditable service shall not be construed to include service for
13 more than 4 years; and provided further, that such creditable service shall not be allowed for any

14 period of active service for which said veteran has received credit pursuant to this paragraph.
15 This paragraph shall apply to national guard and active reserve personnel, both former and
16 present. Creditable service time, both enlisted and commissioned, may be applied toward
17 retirement on a ratio of five 5 years of national guard service or 5 years of active reserve service
18 substitutable for each year of active service. National guard and active reserve personnel shall
19 not be precluded from making said purchase if they qualify as a veteran after vesting or if they
20 reach the maximum of 4 years of eligible service purchase after vesting and qualifying as a
21 veteran; provided, however, that they enter into a purchase agreement within 5 years of the last
22 occurring event.